

PureTask llc-operating-agreement

Operating Agreement of PureTask LLC

A Single-Member California Limited Liability Company

Version: 2.0 Effective Date: [TO BE SET ON FORMATION]

This Operating Agreement (this “**Agreement**”) of **PureTask LLC**, a California limited liability company (the “**Company**”), is made and entered into by **Nathan Chiaratti**, an individual (the “**Member**”), as the sole member of the Company, in accordance with the **California Revised Uniform Limited Liability Company Act, Cal. Corp. Code § 17701.01 et seq.** (the “**Act**”).

This Agreement governs the operation of the Company, the rights and duties of the Member, and the relationship between the Member and the Company. Although the Act permits a single-member LLC to operate without a written operating agreement, the Member adopts this written Agreement to:

- Document the separate existence and limited-liability status of the Company;
- Establish governance, financial, and tax procedures;
- Preserve the liability shield against veil-piercing arguments; and

- Provide a foundation for future operations, including admission of additional members or sale of the Company.
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Article I – Formation

1.1 Formation

The Company was organized as a California limited liability company by the filing of **Articles of Organization (Form LLC-1)** with the California Secretary of State on **[DATE OF FILING]**, file number **[CA FILE NUMBER]**.

1.2 Name

The name of the Company is **PureTask LLC**.

1.3 Principal Office

The principal office of the Company is located at **[PRINCIPAL OFFICE ADDRESS – e.g., Sacramento County, California]**. The Member may change the principal office at any time without amending this Agreement.

1.4 Registered Agent

The Company's registered agent for service of process in California is **[REGISTERED AGENT NAME AND ADDRESS]**.

1.5 Purpose

The Company is organized to engage in **any lawful act or activity for which a limited liability company may be organized under the Act**, including without limitation operating an online marketplace technology platform for cleaning services under the trade name **"PureTask."**

1.6 Duration

The Company shall have **perpetual duration**, until dissolved as provided in Article IX.

1.7 Statement of Information

The Company shall timely file a Statement of Information (Form LLC-12) with the California Secretary of State within 90 days of organization and every two years thereafter, as required by **Cal. Corp. Code § 17702.09**.

Article II – Member

2.1 Sole Member

The sole member of the Company is **Nathan Chiaratti**, residing at **[MEMBER ADDRESS – e.g., Elk Grove, California]**. The Member holds **100%** of the membership interests in the Company.

2.2 No Liability for Company Obligations

Consistent with **Cal. Corp. Code § 17703.04**, the Member is not personally liable for any debt, obligation, or liability of the Company solely by reason of being a member.

2.3 No Fiduciary Duties Owed to Member by Member

As the sole member, no fiduciary duties are owed to or by the Member in that capacity, except as required by the Act.

2.4 Admission of New Members

The Member may admit one or more additional members at any time, upon such terms as the Member determines, by amending this Agreement in writing. Upon admission of an additional member, this Agreement shall be revised to a multi-member operating agreement.

Article III – Capital Contributions

3.1 Initial Contribution

The Member's initial capital contribution to the Company consists of:

- **Cash:** \$[AMOUNT, e.g., \$1,000]
- **Property:** [DESCRIBE OR LIST "None"]
- **Services:** [LIST OR "None"]

3.2 Additional Contributions

The Member may, but is not obligated to, make additional capital contributions. Recorded in Company books.

3.3 No Interest on Contributions

No interest shall be paid on capital contributions.

3.4 Capital Account

The Company shall maintain a capital account for the Member reflecting contributions, distributions, and allocations of profit and loss, in accordance with Treasury Regulation § 1.704-1(b)(2)(iv) to the extent applicable.

3.5 No Member Loans

Any loans by the Member to the Company shall be documented as loans, on arms-length terms. Loans are not capital contributions.

Article IV – Distributions and Allocations

4.1 Distributions

Distributions of cash or property shall be made to the Member at such times and in such amounts as the Member determines, subject to the limitations of **Cal. Corp. Code § 17704.05** (no distribution if it would render the Company insolvent).

4.2 Allocations of Profit and Loss

Because the Company has a single member, all items of income, gain, loss, deduction, and credit are allocated to the Member.

4.3 Tax Distributions

The Member may cause the Company to distribute funds sufficient to enable the Member to pay federal, state, and local income taxes attributable to the Company's income.

Article V – Tax Matters

5.1 Disregarded Entity (Default)

The Company has a single owner and, by default, is a **disregarded entity** for U.S. federal income tax purposes under Treasury Regulation § 301.7701-3. All items of income, gain, loss, deduction, and credit are reported on the Member's individual federal income tax return (IRS Form 1040, Schedule C or similar).

5.2 California Tax Treatment

The Company is subject to the California **annual LLC franchise tax of \$800** (Cal. Rev. & Tax. Code § 17941) and the California **LLC fee** based on total California-source income (Cal. Rev. & Tax. Code § 17942). The Member shall file all required California returns.

5.3 Election to Be Taxed as a Corporation or S-Corporation

The Member may elect to have the Company classified for federal tax purposes as a corporation by filing IRS Form 8832, and may further elect S-corporation status by filing IRS Form 2553. Such election shall be documented by a written resolution of the Member and reflected in the Company's books.

5.4 Tax Year

The Company's tax year is the **calendar year** unless otherwise required by the Internal Revenue Code.

5.5 Tax Records

The Company shall maintain financial and tax records sufficient to support all tax filings, retained for not less than **seven (7) years**.

Article VI – Management

6.1 Member-Managed

The Company is **member-managed**. The Member has full and exclusive authority to manage and control the Company's business and affairs and to make all decisions on behalf of the Company.

6.2 Powers of the Member

The Member is authorized to:

- a. Execute contracts and agreements on behalf of the Company;
- b. Open and close bank accounts and credit accounts;
- c. Hire and terminate employees, contractors, and service providers;
- d. Acquire, hold, and dispose of property of any kind;
- e. Borrow money and grant security interests in Company property;
- f. Bring or defend legal actions on behalf of the Company;
- g. Adopt company policies, including data security, privacy, and risk-management policies;
- h. Engage attorneys, accountants, consultants, and other professionals;
- i. Make and revoke tax elections; and
- j. Take any other action permitted by the Act or this Agreement.

6.3 Signature Authority

6.3.1 Member as Primary Signatory

The Member is the authorized signatory for the Company for all matters.

6.3.2 Delegation of Signature Authority

The Member may, by written delegation, authorize one or more individuals (each a “**Authorized Signatory**”) to execute specific categories of documents on behalf of the Company. Each delegation shall specify:

- **The name and title** of the Authorized Signatory;
- **The categories of documents** the Authorized Signatory may execute (e.g., routine vendor agreements under \$X, employment offers, NDAs);
- **Any monetary limits** on the delegation;
- **The effective date and term** of the delegation;
- **Conditions for revocation** of the delegation.

The Member may revoke any delegation at any time, with or without notice, by written notice to the Authorized Signatory.

6.3.3 Reserved Matters (Member-Only)

The following matters require the Member’s personal signature and may not be delegated:

- Any document executing or modifying a contract with a value over **\$25,000**;
- Any pledge, lien, mortgage, or other encumbrance on Company assets;
- Any loan or guarantee by the Company;
- Any agreement with a related party of the Member;
- Any tax election under IRS Form 8832 or 2553;
- Any transaction involving the sale, merger, or material change in control of the Company;

- Any settlement of litigation exceeding **\$10,000**;
- Any change to this Operating Agreement.

6.4 Compensation

The Member may receive **reasonable compensation** for services performed for the Company. If the Company elects S-corporation tax treatment, the Member shall receive a reasonable salary via W-2, in compliance with IRS guidance for S-corp owner-employees.

6.5 Reimbursement

The Member is entitled to be reimbursed for reasonable expenses incurred on the Company's behalf, supported by appropriate documentation.

6.6 Conflicts of Interest

6.6.1 Disclosure

The Member shall disclose, in writing to the Company's books and records, any transaction between the Member (or any affiliate of the Member) and the Company that is not on arms-length terms.

6.6.2 Related-Party Transactions

Any transaction between the Company and (a) the Member personally, (b) a family member of the Member, (c) a business owned or controlled by the Member or a family member, or (d) any other party with an economic interest in the Member's affairs:

- Must be on **arms-length terms** comparable to those obtainable from an unrelated third party;
- Must be **documented in writing** before the transaction occurs;
- Must be **recorded in the Company's books**;
- For transactions exceeding **\$5,000** in aggregate annual value, must include a memorandum explaining the business purpose, the fairness of the terms, and the basis for the Member's conclusion that the terms are arms-length.

6.6.3 Outside Activities

The Member may engage in other business activities, including activities that may compete with the Company. The Member is not obligated to present any business opportunity to the Company, except where doing so would breach a specific fiduciary duty owed to the Company or violate applicable law. The Member shall avoid using Company confidential information, Company resources, or Company time for personal business outside the Company.

6.6.4 Future Multi-Member Considerations

If additional members are admitted, the conflict-of-interest provisions in this Section 6.6 shall be updated to reflect mutual fiduciary duties among members.

Article VII – Banking, Books, and Separation of Assets

7.1 Separate Bank Accounts

The Company shall maintain one or more bank accounts and credit accounts in its own name, separate from the Member's personal accounts. **No commingling of Company and personal funds is permitted.** All Company income shall be deposited into Company accounts; all Company expenses shall be paid from Company accounts.

7.2 Books and Records

The Company shall maintain accurate books and records, including:

- a. Financial statements;
- b. Tax returns;
- c. Bank and credit-card statements;
- d. Contracts and agreements;
- e. Member resolutions and consents;

- f. Articles of Organization, Statements of Information, and this Agreement;
- g. Delegations of signature authority and revocations (Section 6.3);
- h. Disclosures of related-party transactions (Section 6.6);
- i. Records of Pro Independent Contractor Agreements executed, with electronic signatures;
- j. Privacy and security incident logs;
- k. Such other records as required by **Cal. Corp. Code § 17701.13**.

7.3 Location of Books and Records

The Company's books and records shall be maintained at the **principal office** of the Company (or, if electronic, on a secure cloud-storage system to which the Member has primary access, with at least one offsite backup). The Member shall ensure books and records are reasonably accessible for inspection, audit, or compliance purposes.

7.4 Inspection

The Member may inspect the Company's books and records at any time.

7.5 Annual Statement

The Member shall cause an annual financial statement to be prepared (which may be a simple profit-and-loss statement and balance sheet for tax purposes).

7.6 Conduct of Business in Company Name

All Company business shall be conducted in the name of **PureTask LLC**. Contracts, invoices, leases, and tax filings shall identify the Company by its full legal name. The Member shall not represent the Company as a sole proprietorship after formation.

Article VIII – Indemnification

8.1 Indemnification of Member

To the fullest extent permitted by the Act, the Company shall indemnify the Member against all losses, liabilities, damages, claims, costs, and expenses (including reasonable attorneys' fees) arising out of or related to the Member's service to the Company, except to the extent attributable to the Member's fraud, willful misconduct, or intentional violation of law.

8.2 Advancement of Expenses

The Company shall advance expenses incurred in defending against any claim covered by Section 8.1, upon the Member's written undertaking to repay if indemnification is ultimately not available.

8.3 Insurance

The Company may obtain insurance to cover any liability for which the Member may be indemnified, including directors-and-officers, cyber, commercial general liability, and tech errors-and-omissions coverage.

Article IX – Dissolution and Winding Up

9.1 Events of Dissolution

The Company shall be dissolved upon the first to occur of:

- a. The written decision of the Member;
- b. Any event making it unlawful for the Company to continue;
- c. A judicial decree of dissolution; or
- d. Any other event requiring dissolution under the Act.

9.2 Winding Up

Upon dissolution, the Member shall wind up the Company's affairs:

- a. Settle Company debts and obligations;
- b. Liquidate Company assets;
- c. File a **Certificate of Cancellation (Form LLC-3 or LLC-4/7)** with the California Secretary of State; and
- d. Distribute remaining assets to the Member.

9.3 No Personal Liability for Dissolution Costs

The Member is not personally liable for Company debts upon dissolution, except to the extent of any personal guarantees the Member has given.

Article X – Successor and Estate Planning

10.1 Death or Incapacity of Member

Upon the death or permanent incapacity of the Member, the Member's **successor in interest** (whether by will, trust, or intestate succession) shall succeed to the Member's membership interest. The successor shall be admitted as a member upon execution of a counterpart of this Agreement.

10.2 Trust Ownership

The Member may transfer the Member's membership interest to a revocable living trust without dissolving the Company, provided the trust is the Member's alter ego for tax purposes.

10.3 Continuity

This Section 10 is intended to ensure continuity of the Company's business and avoid involuntary dissolution upon a transition of ownership.

Article XI – General Provisions

11.1 Governing Law

California law, without regard to its conflict-of-laws principles.

11.2 Severability

If any provision is unenforceable, the remainder remains in effect, modified to the minimum extent necessary.

11.3 Amendment

This Agreement may be amended in a writing signed by the Member (and, if applicable, all members).

11.4 Entire Agreement

This Agreement constitutes the entire agreement governing the Company and supersedes prior oral or written agreements.

11.5 Counterparts; Electronic Signature

Electronic signatures have the same effect as handwritten signatures under E-SIGN and UETA.

11.6 No Third-Party Beneficiaries

This Agreement is for the benefit of the Member and the Company only.

11.7 Headings

For convenience only; no interpretive effect.

Execution

The undersigned, being the sole member of **PureTask LLC**, hereby adopts the foregoing Operating Agreement effective as of the date first written above.

MEMBER:

Signature: _____ Printed Name: **Nathan**

Chiaratti Date: _____

COMPANY: PureTask LLC

By: _____ Name: **Nathan Chiaratti**, Sole

Member Date: _____

Appendix A – Operational Hygiene Checklist

To maintain the limited-liability shield and the integrity of this Agreement, the Member commits to:

- ☐ File Articles of Organization (Form LLC-1) with the California SOS.
- ☐ Obtain an EIN from the IRS.
- ☐ Open a dedicated business checking account in the Company's name.
- ☐ Obtain a dedicated business credit card in the Company's name.
- ☐ Obtain a dedicated business email and phone number.
- ☐ File the Statement of Information (Form LLC-12) within 90 days of formation.
- ☐ Pay the \$800 California annual franchise tax (Form 3522) by the 15th day of the 4th month after formation.
- ☐ Re-execute all Platform agreements (ToS, Privacy Policy, AUP, Cookie Policy, Cancellation Policy, Pro IC Agreement) in the Company's name.
- ☐ Re-execute Stripe, Supabase, OneSignal, background-check vendor, and other vendor contracts in the Company's name.
- ☐ Obtain commercial general liability, tech errors-and-omissions, and cyber insurance policies in the Company's name.
- ☐ Conduct all Company business in the Company's name, on Company letterhead, from Company accounts.

- ☐ Document each delegation of signature authority (Section 6.3) in the Company's books.
 - ☐ Disclose related-party transactions (Section 6.6) in the Company's books.
 - ☐ Hold annual Member meeting (even as sole member) and document key decisions in a written resolution.
 - ☐ Maintain corporate records (operating agreement, resolutions, financial statements, tax returns) in a secure location with at least one offsite backup.
 - ☐ Renew the Statement of Information every two years.
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Appendix B – Documents Referenced

- Articles of Organization (Form LLC-1) — California Secretary of State
 - Statement of Information (Form LLC-12) — California Secretary of State
 - IRS Form SS-4 (EIN application)
 - IRS Form 8832 (Entity Classification Election)
 - IRS Form 2553 (S-Corp Election, if elected)
 - FTB Form 3522 (LLC Tax Voucher)
 - FTB Form 568 (LLC Return of Income)
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Appendix C – Form of Signature Authority Delegation

PureTask LLC Delegation of Signature Authority

The undersigned, **Nathan Chiaratti**, sole member of PureTask LLC, hereby delegates limited signature authority to:

- **Name:** _____
- **Title / Role:** _____
- **Effective Date:** _____
- **Categories of Documents Authorized:**

- **Monetary Limit (if any):** \$ _____
- **Term / Expiration:** _____
- **Special Conditions:** _____

This delegation may be revoked at any time, with or without notice, by written notice from the Member. Authorized Signatory has no authority outside the scope above.

MEMBER: Signature: _____ Date: _____

AUTHORIZED SIGNATORY (acknowledged): Signature: _____

_____ Date: _____

This document is a general template for a California single-member LLC. It is not legal advice. Please have a licensed California business attorney review and tailor it to your specific circumstances. The Operating Agreement is not filed with any government agency but should be retained in the Company's records and provided when requested by banks, lenders, investors, or counterparties.